

9. S-PR-0013869 In Re the Fam Trust of Don V Prisk & Sherrie N Prisk

Appearance is required for continued hearing on petition to determine trust property, for accounting, to suspend and remove trustee, and for other relief.

10. S-PR-0013971 In Re the Estate of Field, Jonathan Wayne

Missing sufficient notice of hearing for amended petition to administer estate. Notice of hearing as filed, served, and published erroneously states that the petition requests the appointment of Christine Field as personal representative. See notice at ¶ 3. In fact, the petition requests the appointment of Heather Geldart as personal representative.

Note: missing signed Duties form (DE-147). The origin of the document filed May 26 is unknown to the court, but it is not mandatory Judicial Council form DE-147. The clerk cannot issue letters until the required Duties form is filed. C.R.C. 7.150.

11. S-PR-0014040 In Re the Davis Family Trust Survivor Trust

Appearance is required for hearing on petition to appoint successor trustee. Missing waiver(s) of bond referred to in the petition other than nomination and waiver filed by University of British Columbia.

12. S-PR-0014041 In Re the Donna Beth Foley 2014 Rev Trust

Petition to determine trust property is recommended for approval as prayed.

Note: trust proceedings to determine trust property were previously filed as action no. S-PR-0011407. It is unclear why petitioner filed this matter as a separate action.

13. S-PR-0014042 In Re the Hardy Fam Trust

Petition to determine trust property is recommended for approval in part, as follows:

The petition prays for a determination that the entirety of the Flick Street property be determined to be a trust asset. See Prayer, ¶ 1.

The petition should be granted as to the 1/100 share of the subject real property with current record title in the name of settlor Susan Hardy. The petition adequately establishes a factual and legal basis for relief under Prob.C. § 850 and *Heggstad*.

The petition should be denied as to the 99/100 share of the subject real property with current record title in the name of petitioner. The petition offers no factual or legal basis to determine that petitioner's 99/100 share is a trust asset. To the contrary, the petition establishes that record title to the 99/100 share was funded to the trust during

settlor's lifetime and was distributed from the trust to petitioner in 2020. There is no basis to determine this share of the property is a trust asset.

14. S-PR-0014043 In Re the Estate of Kirchhoff, Susan Lee

Petition to administer estate is recommended for approval as prayed.

15. S-PR-0014044 In Re the Trust of Jay R Selby Trust

Appearance is required for hearing on petition to determine title to property and for other relief.

Missing notice of hearing. Missing service of notice of hearing. Note: it appears no personal representative has been appointed for the estate of Jay R Selby. See June 12, 2026, hearing minutes in action no. S-PR-0014017.

Clarification is needed: petitioner appears individually and as trustee of the Jay W & Lola Mae Selby Family Trust, without explanation. There are no allegations that the Jay W & Lola Mae Selby Family Trust owned or was deprived of any assets described in the petition, and there is no prayer for relief relating to the said trust.

Note: the court does not appear to have subject matter jurisdiction to determine title issues relating to real property in Idaho. Idaho Code § 5-401(1); see also Civ.C. § 755; and *In re Conservatorship of Hume* (2006) 139 Cal.App.4th 393, 404-406 (even where the court may have *in personam* jurisdiction over a fiduciary, it does not have *in rem* jurisdiction over property in another state).

16. S-PR-0014045 In Re the Estate of Appell, Kenneth Conrad

Missing required allegations at ¶ 5a(3)–(4) (RDP).

17. S-PR-0014047 In Re the Winchell Liv Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

18. S-PR-0014048 In Re the Clarence William Stonebraker & Juanita A Stonebraker 1991 Liv Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

19. S-PR-0014049 In Re the Donald Anthony Nugent & Hildegard Lydia Nugent Rev Trust

Petition to modify irrevocable trust is recommended for approval as prayed.